

SETTLEMENT AGREEMENT AND RELEASE

1. This Settlement Agreement and Release (“Agreement”) is executed by and on behalf of JIMMY HU (“Releasor”), as lessee of a certain 2024 HYUNDAI IONIQ 5 , bearing VIN KM8KNDDF9RU253237 (hereinafter referred to as the “subject vehicle”). Releasor, in consideration of payment by Hyundai Motor America, does for himself or herself and each and all of his or her representatives, employees, successors and assigns, hereby releases, discharges, and covenants to hold harmless Hyundai Motor America, Hyundai Motor Company, and each of their past, present or future stockholders, officers, directors, principals, representatives, insurers, subsidiaries, manufacturers, distributors, dealerships, suppliers, affiliates, partners, predecessors, successors, heirs, executors, assigns, associates, attorneys, agents, servants, and employees (collectively, “Releasees”) from any and all claims, causes of action, demands, rights, attorney’s fees, costs, and damages based on, resulting or to result from, or in any way connected with the subject vehicle, the promotion or sale of the subject vehicle, or any nonconformity and/or defect in the design, manufacture, assembly, service, or repair of the subject vehicle (hereinafter referred to as “Claims”). This also includes a release of, without limitation, Claims under any lemon law, breach of warranty, breach of contract, commercial code, vehicle code, advertising, misrepresentation, or fraud claims of any kind in any jurisdiction. Claims unrelated to the Subject Vehicle are not subject to this Agreement.

2. In consideration for this Agreement and in full satisfaction of all Claims, including all claims for attorney’s fees and costs, Hyundai Motor America agrees to the following condition:

- (a) Hyundai Motor America agrees to pay to Releasor and Releasor’s attorneys, EUGENE KRUKAS, PLLC a total of \$7,500 (Seven Thousand Five Hundred Dollars and No Cents).

3. As consideration for the payment described in Paragraph 2 above, it is also expressly agreed that:

- (a) Releasor fully understands that this is a final settlement and disposition of all disputes as to the legal liability against Releasees for and as to the released Claims;
- (b) Releasor specifically waives the provisions of Section 1542 of the California Civil Code, as well as any similar law of any state or territory of the United States, with regard to the released Claims, which states: “A general release does not extend to claims that the creditor or releasing party does not know or suspect to exist in his or her favor at the time of executing the release and that, if known by him or her, would have materially affected his or her settlement with the debtor or released party.”
- (c) Neither Hyundai Motor America’s payment of the consideration recited in Paragraph 2, nor the negotiations preliminary to the execution of this Agreement, shall be considered an admission of liability or wrongdoing by Releasees to any of the claims or causes of actions alleged in or to be inferred from allegations set forth in the Claims indicated in Paragraph 1 above;
- (d) Releasor and the attorney of Releasor’s choice have reviewed the provisions and the contents of this Agreement, and the contents of this Agreement have been explained to Releasor by his or her attorney prior to its execution;
- (e) Releasor represents and warrants that Releasor is entitled to give a full and complete release of the Claims that are the subject hereof;

- (f) Releasor has not assigned or otherwise transferred any interest in any Claims that are the subject hereof;
- (g) Releasor shall not at any time hereafter commence, maintain or prosecute, or cause, encourage or advise to be commenced, maintained or prosecuted any action, suit, proceeding or claim based in whole or in part upon or arising out of or in any way connected with any of the Claims released herein;
- (h) If any action or proceeding is brought by any third party based in whole or in part upon or arising out of or in any way connected with any of the Claims released herein, specifically those involving any and all claims or causes of action alleged in or to be inferred from Releasor's Claims against Releasees, Releasor shall indemnify and hold Releasees harmless from any and all such claims, demands, causes of action, liens, liabilities, and damages;
- (i) Releasor, Releasor's attorneys, and Releasee mutually agree to keep strictly confidential and not to disclose in any manner to any person, entity, website, blog or social networking site: financial terms of this settlement other than, should the need arise, a Court of Law and, on a need-to-know basis, Releasor's spouse, tax consultants, and attorneys.
- (j) Releasor represents and warrants that the action now pending in the New York Supreme, County of Nassau, captioned *Jimmy Hu v. Hyundai Motor America*, Docket No. 654750/2026, will be forthwith dismissed with prejudice and by the signing of this instrument authorize and direct

Releasor's attorneys of record to dismiss any and all such actions or proceedings;

- (k) If any provision of this Agreement or the application thereof is held by a court of competent jurisdiction to be invalid, void, or unenforceable, the remainder provisions or applications of this Agreement shall remain in full force and effect and shall in no way be affected, impaired, or invalidated;
- (l) Releasor and Hyundai Motor America acknowledge and agree that this Agreement should not be construed or interpreted in favor of or against Releasor or Hyundai Motor America. Releasor and Hyundai Motor America intend that this Agreement will be construed neutrally; and
- (m) No promise, agreement, statement or representation except as expressed in this Agreement has been made to or been relied upon by Releasor, and this document contains the entire agreement between Releasor and Hyundai Motor America.

Intending to be legally bound by the terms of this Agreement, the undersigned has affixed his or her signature this _____ day of _____, 2026.

By: _____
JIMMY HU

Sworn to and subscribed before me this _____ day of _____, 2026.

By: _____
Notary Public

Approved as to form and content: KRUKAS & VICARIO

By: _____
EUGENE KRUKAS, ESQ.